

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JORGE LUGO-RODRIGUEZ,

Plaintiff,

- against -

THE CITY OF NEW YORK; NEW YORK CITY
POLICE DEPARTMENT DETECTIVE SHANE
GUGLIUCIELLO, and NEW YORK CITY POLICE
DEPARTMENT DETECTIVE ANDEW ULICH
(Individually and in their official capacities),

Defendants.
-----X

SUMMONS

Plaintiff designates Bronx
County as the place of trial.

The basis of venue is:
The county in which the action
arose per CPLR 504(3)

The cause of action arose in
Bronx County and is against
the City of New York

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
September 10, 2018

Yours etc.

_____/s/_____
Christopher H. Fitzgerald, Esq.
Attorney for Plaintiff
233 Broadway, Suite 2348
New York, NY 10279
(212) 226-2275

TO:

THE CITY OF NEW YORK
Division of Law, Rm 1225 South
1 Centre Street
New York, NY 10007

THE NEW YORK CITY LAW DEPARTMENT
100 Church Street
New York, NY 10007

DETECTIVE SHANE GUGLIUCIELLO
40th PRECINCT
257 Alexander Avenue
Bronx, NY 10454

DETECTIVE ANDEW ULICH
40th PRECINCT
257 Alexander Avenue
Bronx, NY 10454

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

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JORGE LUGO-RODRIGUEZ,

Plaintiff,

VERIFIED COMPLAINT

- against -

THE CITY OF NEW YORK; NEW YORK CITY
POLICE DEPARTMENT DETECTIVE SHANE
GUGLIUCIELLO, and NEW YORK CITY POLICE
DEPARTMENT DETECTIVE ANDEW ULICH
(Individually and in their official capacities),

Defendants.

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Plaintiff, by his attorney, CHRISTOPHER H. FITZGERALD, Esq., complaining of the
Defendants, respectfully alleges the following:

PRELIMINARY STATEMENT

1. Plaintiff JORGE LUGO-RODRIGUEZ brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and all attendant New York state common law and statutes, for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

2. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK was a Municipal corporation duly existing under and by virtue of the laws of the State of New York and doing business in the State of New York.

3. That at all times hereinafter mentioned, the defendants SHANE GUGLIUCIELLO and ANDEW ULICH were employees of the New York City Police Department, acting in their capacity as a police officers, and under color of law.

4. That all acts and incidents complained of herein occurred in Bronx County, City, and State of New York.

5. That heretofore, and on/or about September 11, 2017, and within 90 days after the state law claim of Malicious Prosecution accrued, plaintiff served a Notice of Claim, in writing, sworn by the claimant, containing the name and post office address of the plaintiff and plaintiff's attorney, the nature of the claim, the time when, the place where and the manner by which the claim arose, the items of damage and the injuries claimed to have been sustained, to be served upon the defendants by delivering a copy thereof to the person designated by law as a person to whom such claims may be served.

6. That plaintiff appeared for a hearing pursuant to §50-H of the General Municipal Law on or about September 10, 2018.

7. That the defendants have not adjusted, settled or paid the same.

8. That this claim has been commenced and this action has been started within one year and ninety days after the accrual of the state law violation upon which the New York state law claims are based.

9. That all conditions and requirements precedent to the commencement of this action have been complied with.

10. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants owed the plaintiff a non-delegable duty of care.

11. Pursuant to CPLR Section 1602(7), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants acted with reckless disregard of the safety of others.

12. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss,

irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants are vicariously liable for the negligent acts and omissions of others who caused or contributed to the plaintiff's damages.

13. That by reason of the foregoing, this plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

STATEMENT OF FACTS

14. On the evening of February 22, 2016, Plaintiff was lawfully sitting on a park bench near the corner of East 156th Street and Jackson Avenue in the Bronx, when he was unlawfully detained and questioned by NYPD Detectives defendants SHANE GUGLIUCIELLO ("GUGLIUCIELLO") and ANDREW ULICH ("ULICH") of the Bronx Gang Squad.

15. Seeing that plaintiff was reading a deposition transcript for a lawsuit in which plaintiff had sued other members of the NYPD, and in retaliation for the same, GUGLIUCIELLO and ULICH arrested claimant and framed him for the alleged theft of a black Mercedes Benz, which was parked in front of 755 Jackson Avenue.

16. DEFENDANTS GUGLIUCIELLO and ULICH shoved, punched, and otherwise battered Plaintiff, exacerbating prior injuries to his back and his wrists.

17. Thereafter, claimant was charged under Docket # 2016BX08241, for, *inter alia*, possession of stolen property in the 3rd degree, a D Felony.

18. Plaintiff was incarcerated for 24 hours before being arraigned and had bail set, which he could not meet. He was thereafter detained for another 48 hours pending grand jury action on the felony charges. When no grand jury action was taken, he was released and has been forced to return to court on over 20 occasions over the next 18 months before all charges were dismissed on June 12, 2017.

19. None of the aforementioned acts were protected by legal privilege, nor were such acts legally justified. Said occurrence and the injuries and damages sustained by claimant were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

20. These charges against plaintiff was based entirely on the false allegations and fabrications by DEFENDANTS GUGLIUCIELLO and ULICH.

21. All criminal charges against plaintiff relating to this arrest were dismissed on June 12, 2017.

22. Plaintiff was acting lawfully when he was stopped, arrested and imprisoned by agents and/or employees of the City of New York, including, but not limited to, upon information and belief, agents employed by the New York City Police Department, and/or the NYPD Gang Squad.

23. Plaintiff was then maliciously prosecuted by and at the direction of the said individuals.

24. None of the aforementioned acts are or were protected by legal privilege, nor were such acts legally justified.

25. Said occurrence and the injuries and damages sustained by claimants were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

26. As a result of the defendants' conduct, plaintiff has been caused to suffer, *inter alia*, severe anxiety, humiliation, and embarrassment, damage to personal reputation, apprehension, fear and distrust of the police, emotional and psychological trauma, and violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

FIRST CLAIM FOR RELIEF:
NEGLIGENCE

27. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
28. Defendants negligently caused emotional distress, psychological harm, physical injuries, and damage to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury to the plaintiff and violated their statutory and common law rights as guaranteed by the laws and Constitution of the state of New York.
29. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, and humiliation.

SECOND CLAIM FOR RELIEF:
NEGLIGENT HIRING, RETENTION, and TRAINING

30. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
31. THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT (“NYPD”) has a duty to use reasonable care in the employment, training and supervision of its employees.
32. This includes a duty to investigate and find out whether employees are competent to do work without danger of harm to others.
33. The CITY OF NEW YORK knew or should have known that defendants GUGLIUCIELLO and ULICH were incompetent, have a vicious propensity, and/or have a bad disposition.

34. The CITY OF NEW YORK and the NYPD could have easily anticipated the incident of February 22, 2016.

35. The CITY OF NEW YORK and the NYPD failed to adequately investigate and correct the disposition and propensity of defendants GUGLIUCIELLO and ULICH.

36. Because of this history, the incident of February 22, 2016 was a foreseeable consequence of NYPD'S failure to adequately train, reprimand, or re-assign defendants.

37. Because of the CITY OF NEW YORK and the NYPD's failure to take appropriate action, plaintiff suffered the injuries claimed herein.

THIRD CLAIM FOR RELIEF:
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. §1983

38. Plaintiff repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

39. At the time of plaintiff's arrest, there was no credible evidence that plaintiff had committed a crime.

40. All of the aforementioned acts of the Defendant CITY OF NEW YORK, and the individual defendants and their agents, servants, and employees, were carried out under the color of state law.

41. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

42. The acts complained of were carried out by the aforementioned individual defendants and other unidentified officers of the NYPD present on the scene, in their

capacities as police officers, with all of the actual and/or apparent authority attendant thereto.

43. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to their customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under supervision of ranking officers of said department.

44. The individual defendants, and defendant CITY OF NEW YORK, collectively and individually, while acting under color of state law, engaged in Constitutionally violative conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

45. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

FOURTH CLAIM FOR RELIEF:
FALSE ARREST UNDER 42 U.S.C. §1983

46. Plaintiff repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

47. Plaintiff was arrested in the absence of probable cause, at the direction of, or under practices, policies or customs promulgated by the NEW YORK POLICE DEPARTMENT and CITY OF NEW YORK.

48. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.
49. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.
50. As a result of defendants' impermissible conduct, plaintiff demand judgment against defendants in a sum of money to be determined at trial.

FIFTH CLAIM FOR RELIEF:
MALICIOUS PROSECUTION UNDER STATE and FEDERAL LAW

51. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
52. At the aforementioned times and locations, was detained and held under the imprisonment and control of the defendants and other unidentified officers of the NYPD present on the scene without probable cause.
53. Defendants commenced the criminal action against plaintiff in the absence of any probable cause that a crime had been committed.
54. Defendants commenced this criminal action out of malice.
55. The criminal action against plaintiff has terminated in his favor.

56. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

57. That plaintiff was conscious of the confinement.

58. That as a direct, sole and proximate result of the false arrest, imprisonment, and malicious prosecution, plaintiff was caused to and did sustain humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, injury to personal reputation, inconvenience, and the disturbance and disruption of life.

59. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the law of the Constitutions of the State of New York and of the United States.

60. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and his standing within their community.

SIXTH CLAIM FOR RELIEF:
EXCESSIVE FORCE UNDER FEDERAL LAW

61. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

62. In detaining plaintiff, defendants used force.

63. The force used was unreasonable and excessive.

64. Plaintiff was harmed as a result of the use of this force.

65. Defendants' use of force was a substantial factor in causing the harm to plaintiff.

66. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, and loss of freedom.

WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
September 10, 2018

Yours, etc.

The Law Office of Christopher H. Fitzgerald

/s/

Christopher H. Fitzgerald

Attorneys for Plaintiff

JORGE LUGO-RODRIGUEZ

233 Broadway, Suite 2348

New York, NY 10279

(212) 226-2275

ATTORNEY'S VERIFICATION

CHRISTOPHER H. FITZGERALD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at THE LAW OFFICE OF CHRISTOPHER H. FITZGERALD, attorneys of record for plaintiff JORGE LUGO-RODRIGUEZ. I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff are not presently in the county wherein I maintain my offices.

DATED: New York, New York
September 10, 2018

_____/s/_____
CHRISTOPHER H. FITZGERALD
Counsel for Plaintiff